

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

TAHJE KNIGHT,

Plaintiff,

-against-

**THE CITY OF NEW YORK; P.O.
JAMES WECK; LT. ERIC DYM; DET.
JAYTHER LIRIANO; P.O. NESTOR
AMARANTEPOLANCO; DET. JOSE
TEJADA; P.O. MICHAEL VISINTIN;
P.O. JOHN JOYCE; SGT. MICHAEL
KONTOROVICH; P.O. ZAKARIA
HIJAZI; P.O. IVAN LUCIANO; SGT.
MAYKY SANTOS; and JOHN DOES 1-3,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Bronx County as
the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
June 29, 2023

Rickner PLLC

By:



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Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
Corporation Counsel
New York City Law Department
100 Church Street
New York, New York 10007

P.O. JAMES WECK (Shield No. 10752, Tax ID 963803)
DET. JAYTHER LIRIANO (Shield No. 7542, Tax ID 964614)
P.O. NESTOR AMARANTEPOLANCO (Shield No. 16064, Tax ID 964221)
DET. JOSE TEJADA (Shield No. 5342, Tax ID 960018)
P.O. MICHAEL VISINTIN (Shield No. 14001, Tax ID 953536)
Police Service Area 7
737 Melrose Avenue
Bronx, NY 10455

P.O. IVAN LUCIANO (Shield No. 5398, Tax ID 958845)
SGT. MAYKY SANTOS (Shield No. 2317, Tax ID 944982)
40th Precinct
257 Alexander Ave.
Bronx, NY, 10454

P.O. JOHN JOYCE (Shield No. 5953, Tax ID 961846)
P.O. ZAKARIA HIJAZI (Shield No. 19625, Tax ID 966623)
One Police Plaza
New York, NY 10007

SGT. MICHAEL KONTOROVICH (Shield No. 2732, Tax ID 950700)
76th Precinct
191 Union Street
Brooklyn, NY 11231

LT. ERIC DYM (Tax ID 933762) (Retired)

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****TAHJE KNIGHT,**

Plaintiff,

-against-

**THE CITY OF NEW YORK; P.O.
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HIJAZI; P.O. IVAN LUCIANO; SGT.
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Defendants.

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VERIFIED COMPLAINT

Plaintiff Tahje Knight, by his attorneys at Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States, the Constitution of the State of New York, the statutes and common law of the State of New York, and the Administrative Code of the City of New York.

JURISDICTION

2. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and City of New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.
4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller for his November 2022 arrest, and the Comptroller designated the claim as number 2023PI003559.
5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on April 6, 2023.
6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.
7. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx, because the Plaintiff's claims arose in the County of the Bronx.
8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff is, and was at all times relevant to this action, a resident of the County of the Bronx in the State of New York.
10. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.
11. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers, as said risks attach to the public consumers of the services provided by the NYPD.
12. Defendant Police Officer James Weck (Shield No. 10752, Tax ID 963803) ("Weck") was at all relevant times an NYPD officer, employed by the City of New York. At all relevant

times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

13. Defendant Retired Lieutenant Eric Dym (Tax ID 933762) (“Dym”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

14. Defendant Detective Jayther Liriano (Shield No.7542, Tax ID 964614) (“Liriano”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

15. Defendant Police Officer Nestor Amarantepolanco (Shield No. 16064, Tax ID 964221) (“Amarantepolanco”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

16. Defendant Detective Jose Tejada (Shield No. 5342, Tax ID 960018) (“Tejada”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

17. Defendant Police Officer Michael Visintin (Shield No. 14001, Tax ID 953536) (“Visintin”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

18. Defendant Police Officer John Joyce (Shield No. 5953, Tax ID 961846) (“Joyce”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

19. Defendant Sergeant Michael Kontorovich (Shield No. 2732, Tax ID 950700) (“Kontorovich”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

20. Defendants Weck, Dym, Liriano, Amarantepolanco, Tejada, Visintin, Joyce, and Kontorovich are referred to collectively as the “PSA7 Defendants.”

21. Defendant Police Officer Zakaria Hijazi (Shield No. 19625, Tax ID 966623) (“Hijazi”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

22. Defendant Police Officer Ivan Luciano (Shield No. 5398, Tax ID 958845) (“Hijazi”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

23. Defendant Sergeant Mayky Santos, (Shield No. 2317, Tax ID 944982) (“Santos”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times, he was acting under color of New York State law, and acting in the course and scope of his duties attendant to that employment. He is sued in his individual capacity.

24. Defendants Hijazi, Luciano, and Santos are referred to collectively as the “40th Precinct Defendants.”

25. Defendants John Does 1–3 (the “Doe Defendants”) were at all relevant times NYPD officers employed by the City of New York. At all relevant times described herein, the Doe Defendants were acting under color of New York State law, and acting in the course and scope of their duties attendant to that employment. Each is sued in an individual capacity.

26. The true names and shield numbers of the Doe Defendants are not currently known to Plaintiff. However, upon information and belief, Doe 3 may have the surname “Sheehan.”

27. Each Doe Defendant is an employee or agent of the NYPD. Accordingly, each is entitled to representation in this action by the New York City Law Department upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officers as defendants in an amended pleading once their true names and shield numbers are known and (b) the Law Department should immediately begin preparing defenses of the Doe Defendants in this action.

28. At all relevant times, the Doe Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

29. The PSA7 Defendants, 40th Precinct Defendants, and Doe Defendants are referred to collectively as the “Individual Defendants.”

30. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. At all times relevant herein, each of the Individual

Defendants were acting for and on behalf of the NYPD, with the power and authority vested in them as officers, agents, and employees of the NYPD, and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

The History and Pattern of Harassment Directed at Plaintiff

31. For years, NYPD officers of the 40th Precinct and Public Service Area (“PSA”) 7—including the Individual Defendants—have unlawfully targeted, followed, harassed, stopped, searched, arrested, and attempted to prosecute Plaintiff in the absence of probable cause.¹

32. Upon information and belief, this harassment started after local law enforcement presumed that Plaintiff was involved in gang activity based on the acts of persons whom Plaintiff knows, rather than the personal actions of Plaintiff himself.

33. Based on this presumption, the Individual Defendants—and others the 40th precinct and PSA7—regularly stop and frisk Plaintiff without lawful justification, and repeatedly arrest and detain him in the absence of probable cause, often holding him for extended periods of time while they search for evidence of a crime or violation.

34. Upon information and belief, Plaintiff has been arrested and charged by officers of the 40th Precinct and PSA7 dozens of times. But nearly all of these charges have been dismissed, or were never even pursued by the District Attorney’s Office, as in the cases detailed below.

The March 12, 2021 Incident Involving the PSA7 Defendants

35. On March 12, 2021, Plaintiff was lawfully in the vicinity of East 125th Street in the Bronx when he was unlawfully approached, frisked, arrested, and detained by officers from PSA7.

¹ See, e.g., *Knight v. City of New York et al.*, Index No. 34166/2020E (Sup. Ct. Bronx Co.); *Knight et al. v. City of New York et al.*, Index No. 802343/2022E (Sup. Ct. Bronx Co.).

36. The officers involved in this unlawful stop, frisk, and arrest include Defendants Week, Dym, Joyce, Visintin, Liriano, Kontorovich, Tejada, and Amarantepolanco.

37. The stop report, authored by Defendant Amarantepolanco, stated that the officers were canvassing the area after a report a shots fired was made a few blocks away.

38. Amarantepolanco reported that, upon seeing the uniformed officers approaching the area, Plaintiff was observed walking away from a group of three other individuals, raising the officers' suspicion.

39. The Individual Defendants stopped and frisked Plaintiff, who had no contraband or illegal items on his person. But instead of letting Plaintiff go, the officers proceeded to cuff and detain Plaintiff, simply because the officers recognized him and they had an opportunity to hold him while they searched for evidence of a crime.

40. Plaintiff remained in a cell at the precinct while the officers tried to uncover inculpatory evidence. Having nothing to pin on Plaintiff, they eventually let him go with a C-Summons charging him with Disorderly Conduct.

41. The charge was based on the false and conclusory assertions of Defendant Week, who claimed that Plaintiff ran toward the officers "in a violent manner giving the apperance [sic] of engaging the officers in a physical altercation."

42. But the body-worn camera footage shows Plaintiff standing completely still with his hands in the air as the officers walk toward him. Plaintiff never runs, resists, or fails to comply with any police order during the interaction, in which he repeatedly asks why he is being arrested.

43. Upon information and belief, Plaintiff was never given an answer about the reason for his arrest. Moreover, the original stop report makes no mention of Plaintiff allegedly running

toward the officers, further evidencing the officers' post-hoc efforts to cover-up the false arrest after their attempt to inculcate Plaintiff failed.

44. Upon information and belief, the District Attorney's office declined to prosecute this bogus charge.

The June 5, 2021 Incident Involving the 40th Precinct Defendants

45. Several months later on June 5, 2021, officers of the 40th Precinct—who, similar to the PSA7 officers, have a history of harassing Plaintiff—including, but not limited to Defendants Hijazi and Juciano, saw Plaintiff driving in the Bronx and recognized him from prior interactions.

46. Without probable cause that any traffic violation or other offense had been committed, Hijazi and Juciano pulled over Plaintiff, asked him to step out of his vehicle, and arrested him.

47. Defendant Sgt. Santos responded to the scene and spoke to the arresting officers about the incident, but did nothing to prevent the unlawful arrest or detention of Plaintiff.

48. The officers did not look up Plaintiff's driving record for at least two hours after the arrest, at which time they used the information to charge Plaintiff with a traffic infraction.

49. Defendants also charged Plaintiff with possession of a controlled substance based on the conclusory statement of Hijazi that a green drink found inside of the car belonging to a passenger—discovered after the arrest was effectuated—was “lean,” an intoxicant typically made from cough syrup and prescription medications.²

50. Upon information and belief, no officer conducted any testing on the substance to confirm its contents, and maliciously charged Plaintiff without probable cause that the substance was, in fact, unlawful.

² [https://en.wikipedia.org/wiki/Lean_\(drug\)](https://en.wikipedia.org/wiki/Lean_(drug)).

51. The Individual Defendants held Plaintiff for over 24 hours before sending him to arraignment—a *per se* violation of the New York State Constitution—and an unnecessary delay used for the improper purpose of gathering evidence to cover up the unlawful stop.

52. All charges arising from this unlawful stop were dismissed in their entirety on the defense’s motion nearly two months later, on July 29, 2023.

The November 11, 2022 Incident Involving the Doe Defendants

53. At approximately 6:00 a.m. on November 11, 2022, Does 1 and 2, both described as Hispanic males wearing plain clothes, came to Plaintiff’s Bronx home, entered his bedroom while he was asleep, shined their flashlights in his eyes, and claimed to have a warrant for his arrest.

54. Upon information and belief, no such warrant ever existed.

55. After being held at the precinct, Plaintiff was told that he would be transported to Central Booking for further processing. But just before he was transferred, Doe 3 came to the area and instructed the arresting officers, Does 1 and 2, not to take Plaintiff anywhere.

56. Plaintiff repeatedly asked why he was being held, to which Doe 3 responded that he wasn’t going to disclose the charges because Plaintiff invoked his right to counsel.

57. At some point, Plaintiff learned that he was suspected of participating in a robbery. But after some time, Plaintiff was told that the case against him was “dismissed.”

58. But the Doe Defendants held Plaintiff for an additional 1–2 hours, again without probable cause, claiming that that there was a second warrant that needed to be “cleared” before Plaintiff could leave. Upon information and belief, no such warrant ever existed.

59. This detention was unlawful and made in the absence of probable cause, and with the unlawful and malicious purpose of detaining Plaintiff while the Doe Defendants searched for evidence of a crime or violation.

60. When the Doe Officers found nothing, they let Plaintiff go without any ticket, summons, or other paperwork, and Plaintiff never heard anything of the supposed warrants or potential charges again, further evidencing the fact that the Individual Defendants did not have the requisite probable cause to arrest or hold Plaintiff in the first place.

61. In each of these instances, the Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights. The Individual Defendants are therefore liable to Plaintiff for compensatory and for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

62. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

THE INDIVIDUAL DEFENDANTS' HISTORY OF MISCONDUCT

63. The Individual Defendants have a history of violating people's civil rights while employed by the NYPD.

64. For example, Defendant Dym, now retired, has been called the NYPD's most complained of officer for falsifying official reports and for his rampant use of excessive force, including pointing his gun at unarmed civilians and escalating police encounters by punching members of the public in the face and head.³ Despite this history, Dym was rarely, if ever, disciplined, was promoted several times, and was allowed to retire in the face of a handful of serious complaints pending against him.⁴

³ See Yoav Gonen, "Most-Complained-About NYPD Cop Retires, Avoiding Penalties," The City (Sept. 19, 2022), available thecity.nyc/2022/9/19/23360186/nypd-eric-dym-civilian-complaints-retires.

⁴ Upon information and belief, Dym has now adopted the "most complained of cop" title as a badge of honor, using it as his social media handle on [Twitter](#), alongside a photo of him raising a baton to unarmed protestors in the Bronx in the summer of 2020. He frequently boasts about his excessive tactics on a [podcast](#) hosted by former law enforcement, where he displays the same photo of himself next to his biography. See n.3; www.hrw.org/report/2020/09/30/kettling-protesters-bronx/systemic-police-brutality-and-its-costs-united-states.

65. Defendants Weck and Visintin have been found by the Civilian Complaint Review Board (“CCRB”) to have violated the rights of members of the public, including engaging in unlawful searches and seizures, and interfering with the lawful recording of police activity.⁵

66. Defendants Amarantepolanco, Tejada, Joyce, and Luciano each have histories of unlawful searches and seizures, including the type of unconstitutional stop-and-frisk tactics employed on Plaintiff.

67. Despite these repeated incidents of misconduct, the City and the NYPD have failed to meaningfully supervise or discipline these officers, allowing them to continue this pattern of harassment and abuse of power against Plaintiff and others like him.

THE INJURIES TO PLAINTIFF

68. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

69. The Individual Defendants’ actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff’s civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

70. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CLAIM FOR RELIEF: FALSE ARREST UNDER 42 U.S.C. § 1983 AGAINST THE INDIVIDUAL DEFENDANTS

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

⁵ Historical CCRB data available at www.nyc.gov/site/ccrb/policy/MOS-records.page.

72. The Individual Defendants restrained and arrested Plaintiff without probable cause.

73. By virtue of the unconstitutional acts and omissions of the Individual Defendants, Plaintiff was deprived of his civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable or unlawful searches and seizures.

74. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty.

75. As a result of the above unconstitutional conduct, the Individual Defendants are liable to Plaintiff for compensatory and punitive damages under 42 U.S.C. § 1983.

**SECOND CLAIM FOR RELIEF:
ILLEGAL SEARCH UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. The Individual Defendants searched Plaintiff, his person, and/or his property without probable cause to do so.

78. Even if there was probable cause, the manner in which these searches were conducted was unreasonable.

79. By virtue of the unconstitutional acts and omissions of the Individual Defendants, Plaintiff was deprived of his civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable or unlawful searches and seizures.

80. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty.

81. As a result of the above unconstitutional conduct, the Individual Defendants are liable to Plaintiff for compensatory and punitive damages under 42 U.S.C. § 1983.

**THIRD CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

82. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

83. The Individual Defendants falsified documents and provided false evidence in furtherance of maliciously prosecuting Plaintiff in the absence of probable cause.

84. By virtue of the unconstitutional acts and omissions of the Individual Defendants, Plaintiff was deprived of his right to due process guaranteed under the Fourteenth Amendment to the United States Constitution.

85. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty.

86. As a result of the above unconstitutional conduct, the Individual Defendants are liable to Plaintiff for compensatory and punitive damages under 42 U.S.C. § 1983.

**FOURTH CLAIM FOR RELIEF:
FAILURE TO INTERVENE AND CONSPIRACY UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

87. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

88. The Individual Defendants failed to intervene to prevent, end, or report the unlawful and unconstitutional conduct to which Plaintiff was subjected, despite the fact they had several opportunities to do so.

89. The Individual Defendants agreed among themselves and with other individuals to act in concert and thus conspired to deprive Plaintiff of clearly established civil rights.

90. The Individual Defendants thereby displayed deliberate indifference to Plaintiff's rights, including Plaintiff's right to be free from unreasonable and unlawful searches and seizures and his right to due process of law.

91. By virtue of the unconstitutional acts and omissions of the Individual Defendants, Plaintiff was deprived of his civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution.

92. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty.

93. As a result of the above unconstitutional conduct, the Individual Defendants are liable to Plaintiff for compensatory and punitive damages under 42 U.S.C. § 1983.

**FIFTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

94. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

95. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

96. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

97. Qualified immunity is no defense to this claim.

98. As a result of the above tortious and unconstitutional conduct of the Individual Defendants, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty, and the Individual Defendants are liable to Plaintiff for compensatory and punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

SIXTH CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK

99. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

100. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

101. Specifically, the NYPD has a history of conducting unconstitutional stop-and-frisk procedures absent probable cause. Despite these policies being officially overturned after federal courts declared the practice unconstitutional, the NYPD continues to police certain communities, including Plaintiff's, with the same tactics—they approach, frisk, and often detain or arrest persons in “high crime” neighborhoods simply because of their location, proximity to past crime, or associations or friendships with persons previously arrested.

102. In so doing, the NYPD fails to make individualized probable cause determinations specific to the conduct of the individual who is stopped (and often arrested), instead relying on personal and structural biases in choosing who to approach or detain.

103. Plaintiff has been subjected to this pattern of harassment and over-policing based on his race, economic-status, and the neighborhood in which he lives.

104. Moreover, the NYPD and City refuses to adequately supervise or discipline its officers for unlawful and discriminatory conduct. Thus, the City continuously ratifies the unconstitutional and tortious actions of NYPD officers by failing to engage in any real or meaningful discipline process, even in cases where the City's civilian oversight board substantiates the misconduct and recommends such discipline.

105. As a result of these *de facto* and express policies of the NYPD, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty, and the City is liable to Plaintiff for any damages caused.

**SEVENTH CLAIM FOR RELIEF:
ASSAULT AGAINST DOE DEFENDANTS AND THE CITY OF NEW YORK**

106. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

107. The Individual Defendants intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

108. As a result of the above tortious conduct, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty, and the Doe Defendants are liable to Plaintiff for compensatory and punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
BATTERY AGAINST DOE DEFENDANTS AND THE CITY OF NEW YORK**

109. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

110. The Individual Defendants intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

111.As a result of the above tortious conduct, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty, and the Doe Defendants are liable to Plaintiff for compensatory and punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT AGAINST
THE DOE DEFENDANTS AND THE CITY OF NEW YORK**

112.Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

113.Plaintiff was arrested, handcuffed, and detained in the absence of probable cause.

114.That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

115.Plaintiff was conscious of the confinement and did not consent to such confinement.

116.Even if probable cause existed, Plaintiff's arrests were *void ab initio* because he was taken to a precinct or otherwise taken into custody, rather than being given a summons or other process without such detainment, in violation of New York Criminal Procedure Law § 150.20, and/or was held more than 24 hours without an arraignment.

117.As a result of the above tortious conduct, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty, and the Individual Defendants are liable to Plaintiff for damages, as is the City of New York under the doctrine of *respondeat superior*.

**TENTH CLAIM FOR RELIEF:
NEGLIGENT TRAINING, SUPERVISION, RETENTION, AND DISCIPLINE AGAINST
THE CITY OF NEW YORK**

118.Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

119.The City of New York negligently trained, supervised, retained, and disciplined the Individual Defendants, whose conduct were the direct and proximate cause of the injury to Plaintiff's constitutional, statutory, and common law rights.

120.As a result of the above tortious conduct, Plaintiff was caused to suffer physical and emotional injuries, as well as a deprivation of liberty, and the Individual Defendants are liable to Plaintiff for damages, as is the City of New York under the doctrine of *respondeat superior*.

**ELEVENTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST DOE DEFENDANTS AND THE CITY OF NEW YORK**

121.Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

122.Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, § 12, including the following rights:

- a. freedom from unreasonable search and seizure of person and property;
- b. freedom from arrest without probable cause;
- c. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- d. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- e. freedom from deprivation of liberty without due process of law.

123.As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the State Constitution, Plaintiff was caused to suffer

physical and emotional injuries, as well as a deprivation of liberty, and the Doe Defendants are liable to Plaintiff for damages, as is the City under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
June 29, 2023

Rickner PLLC

By:



Stephanie Panousieris

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Stephanie Panousieris, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff.

2) I have read the annexed Verified Complaint and know the contents thereof, and the same is true to my knowledge, except those matters alleged upon information and belief; as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where counsel maintains offices.

Dated: New York, New York
June 29, 2023

Rickner PLLC

By:



Stephanie Panousieris

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New York, New York 10005
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